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File No.: EXP202304263

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On March 31, 2023, a complaint was filed with the Spanish Agency for Data Protection.

The reasons for the complaint are as follows:

"Photos of a sexual nature of mine have been published without my consent. These photos were stored and no one could access them. They have spread in a Telegram group and the authors are unknown and anonymous. I cannot access my account to report them, and they remain, in an encrypted manner, available to the participants of the group. The photos show all my intimate areas. The photos were published by a user named: @***USER.1 on March 1, 2023."

The following URL is attached: ***URL.1.

Documentation provided: two screenshots taken on a mobile device showing a collection of photographs where the naked torso of a woman is visible are attached.

SECOND: On March 31, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was accepted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

From the two screenshots provided as an attachment to the complaint, the dissemination of the photographs in a TELEGRAM forum was located; the publication was initially made by the user @***USER.1 on February 22, 2023, who posted three photographs of the affected person in the forum. Subsequently, the user @***USER.2 responded to the comment of @***USER.1 by contributing a greater number of photographs to the forum on March 2, 2023. The photographs were disseminated in a subgroup of the channel "****FORUM.1" of the TELEGRAM messaging network. At the time of detecting the publication, this group had more than 15,000 subscribers.

The published images are nude photographs of the affected person, with no evidence that they had been previously published, the complainant asserting that the photos "were stored and no one could access them."

Access was gained to the subforum "(...)" of the group "****FORUM.1" of the TELEGRAM social network, obtaining screenshots and evidence of the publication of multiple photographs where the same person appears naked.

On April 1, 2023, collaboration was requested from the service provider TELEGRAM, via the email address ***ADDRESS.1 to carry out the removal of the reported photographs.

On April 4, 2023, after verifying that the photographs remained published in the aforementioned TELEGRAM group, visible not only to the current members of the group but to any member who joined later, a new attempt was decided upon using a new channel, in this case, the email address ***ADDRESS.2.

On this same date, April 4, 2023, the existence of a CHATBOT enabled in the TELEGRAM APP itself named GDPRBOT, designed for inquiries related to privacy on this social network, was detected; this channel was used to launch a new request for collaboration for the removal of the reported photographs.

On April 5, 2023, it was verified that the photographs had been deleted and both the group where they had been published ("****FORUM.1") and all the subforums linked to it had been removed by TELEGRAM.

On April 5, 2023, a request for information was made, via international certified mail, addressed to the service provider TELEGRAM UK HOLDINGS LTD., requesting identifying information associated with users @***USER.1 and @***USER.2. This request was returned by the postal service without being

received by the recipient.

On June 5, 2023, a new attempt was made to notify the previous request addressed in this case to TELEGRAM MESSENGER INC using an alternative address obtained from the privacy policy of this intermediary service provider, which specified that it had a representative in the European Economic Area.

On July 5, 2023, the Data Protection Officer of this Agency received an email from the address ***ADDRESS.3 with the subject: Response to your letter dated June 5, 2023 addressed to our client, Telegram Messenger Inc., with reference EXP202304263” and with the following text (an unofficial translation into Spanish is shown):

“We write to you in our capacity as GDPR representatives under Article 27 of the GDPR for our client Telegram Messenger Inc.

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Unfortunately, we are unable to submit our client's response to a request from the Spanish Agency for Data Protection in the AEPD Online Registry due to apparent technical issues (see attached screenshots).

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A first error message appears on the screen after submitting our information and our client's information, indicating that, for technical reasons, the platform could not recognize the representation in the proxy registry (screenshot 1).

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By clicking "Accept," we were able to complete the rest of the form; however, a second error message appears upon submission, indicating that the service is temporarily unavailable (screenshot 2).

Therefore, we are sending you the attached letter via email (July 5, 2023).

We remain at your disposal should you have any questions.”

The letter attached to this email as a PDF file contains the following content (unofficial translation):

“We acknowledge receipt of your letter dated June 5, 2023, reference EXP202304263 regarding a request related to our client, Telegram Messenger Inc. (Telegram). Your letter was received by us on June 15, 2023, and sent to our client Telegram.

We write to you in our capacity as the designated representative of Telegram under Article 27 of the GDPR. Telegram has investigated the facts in question and states that it does not have the technical means to comply with your request. Due to the structure of Telegram's data storage systems, Telegram was unable to obtain the requested information based on the input data you provided (Telegram usernames @***USER.1 and @***USER.2).

We remain at your disposal should you have any questions or require further information.

Thank you very much and kind regards.”

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures.”

II

Legitimacy for processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines “processing” as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, collation or interconnection, limitation, erasure or destruction.”

Including images that identify or make a person identifiable on platforms constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to the complaint, the usual legitimizing ground is generally consent. It is the person who uploads the personal data and the images that can be viewed without any limitation who must demonstrate that they have that consent. For such processing to be carried out lawfully, it must comply with the provisions of Article 6.1 of the GDPR, which states:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

III

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Conclusion

To identify the person or persons who were publishing the images, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

“1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection will act in any case when it is necessary to investigate treatments that involve massive traffic of personal data.

2. The preliminary investigative actions will be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication that has been sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

After conducting the investigations mentioned in the Facts, the following has been concluded:

At the time the complaint was filed, the content for which removal was requested from Telegram was available. Subsequently, the removal of the reported content has been confirmed.

The removal of the reported photographs disseminated through the Telegram group “***FORO.1” has been achieved, as well as the deletion of this group from the social network.

The individuals responsible for the publication could not be identified; TELEGRAM responds that it does not have the technical means to provide us with identifying information about the users

@***USUARIO.1 and @***USUARIO.2.

Thus, since it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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